

he should owe at his death, and the Court directed the Master to calculate interest on such of the debts as carried interest *up to the death of the settlor*; but the Master was not to carry on any interest on any security beyond the settlor's decease, but in case there were assets to pay the simple contract debts as well as the specialty debts, the question of ulterior interest was reserved. At the present day, however, the rule is to consider the specialty debt as subsisting up to the time of payment, *i.e.*, to calculate interest on *the principal* not only up to the date of the deed or the death of the testator, but up to the day of payment (*e*).

6. **Bond creditors not entitled to interest beyond the penalty.** — Bond creditors, it must be observed, will in no case be entitled to receive more for principal and interest than the amount of the penalty (*f*).

(*e*) *Bateman v. Margerison*, 10 Beav. 477.

(*f*) *Hughes v. Wynn*, 1 M. & K. 20; *Anon.* 1 Salk. 154; *Clowes v. Waters*, 16 Jur. 632.